

62. **Sale by mortgage.** — In a *mortgage* accompanied with a *power of sale*, the mortgagee, who is a *quasi* trustee, can under the power make a title to the purchaser without the concurrence of the mortgagor (*b*); and a clause in the mortgage deed that the mortgagor shall, if required, be a party to the conveyance, is considered a contract for the exclusive benefit of the mortgagee, and not as imposing the necessity of procuring the mortgagor's consent to the sale (*c*).

63. **Whether the *cestuis que trust* should be parties.** — If the trustees have a power of signing discharges for the purchase-money, the *cestuis que trust* need not be made parties to the conveyance (*d*); but as trustees are bound to covenant against their own incumbrances only, the *cestuis que trust*, where it is practicable, are usually made parties to the deed, that the purchaser may have the benefit of their covenants for title according to the extent of their respective interests (*e*). In sales, however, under the direction of the Court of Chancery, it is the rule *not* to make the *cestuis que trust* parties; for this would involve the necessity of previously inquiring *who* are beneficially interested, and in *what* proportions, whereas it is a common proceeding of the Court to order a sale in the first instance, and leave the rights of the respective parties to be settled by a subsequent adjudication (*f*).

[64. Trustees for sale having, under the recent enactments, power to give a complete discharge for the purchase-money, are persons "absolutely entitled" within the meaning of the Lands Clauses Consolidation Act, 1845, s. 69, and are entitled to have money in Court, under that Act, paid out to them without bringing their *cestuis que trust* before the Court (*g*). And it makes no difference that the trust for

(*b*) *Corder v. Morgan*, 18 Ves. 344; *Clay v. Sharpe*, cited *Id.* 346, note (*b*); *Alexander v. Crosbie*, 6 Ir. Eq. Rep. 518.

(*c*) *Corder v. Morgan*, 18 Ves. 347, *per* Sir W. Grant.

(*d*) See *Binks v. Lord Rokeby*, 2 Mad. 227.

(*e*) See *Re London Bridge Acts*, 13 Sim. 176.

(*f*) *Wakeman v. Duchess of Rutland*, 3 Ves. 233, 504; affirmed in D.

P. 8 B. P. C. 145; *Colston v. Lilley*, 3 May, 1855, V. C. Stuart at chambers; *Wyman v. Carter*, 12 L. R. Eq. 309; *Re Williams's Estate*, 5 De G. & Sm. 515; *Cottrell v. Cottrell*, 2 L. R. Eq. 330; and see *Loyd v. Griffith*, 3 Atk. 264; *Freeland v. Pearson*, 7 L. R. Eq. 246.

[(*g*) *Re Hobson's Trusts*, 7 Ch. D. 708; *Re Thomas's Settlement*, W. N. 1882, p. 7.]